

25SMCV06764 25SMCV06764

County: los-angeles

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 8, 2026

CASE NUMBER

25SMCV06764

MOTIONS

Demurrer and Motion to Strike Portions of Complaint

MOVING PARTIES

Defendants Farmers Group, Inc.; Farmers Insurance
Exchange; and Fire Insurance Exchange

OPPOSING PARTIES

Plaintiffs Dog Heaven LLC; Michael Flesch; and Leslie
Flesch

MOTIONS

This case arises from a denied insurance claim after Plaintiffs' home was destroyed by a wildfire.

On December 29, 2025, Plaintiffs Dog Heaven LLC; Michael Flesch; and Leslie Flesch ("Plaintiffs") filed suit against Defendants Farmers Group Inc.; Farmers Insurance Exchange; Fire Insurance Exchange; Steven Souza; Steven A. Souza Insurance Agency Inc.; Cynthia Paloian; and CP Insurance Agency Inc. ("Defendants").

On July 7, 2026, Plaintiffs filed the operative First Amended Complaint ("FAC") against Defendants, alleging eight causes of action as follows:

(1)

Breach of Contract

(2)

Breach of Implied Covenant of Good Faith and Fair Dealing

(3)

Negligence

(4)

Negligent and/or Fraudulent Misrepresentation

(5)

Fraudulent Concealment

(6)

Unjust Enrichment/Equitable Restitution (Alternative)

(7)

Unfair Business Practices (Bus. & Prof. Code § 17200)

(8)

Declaratory Relief

Defendants Farmers Group, Inc. and Farmers Insurance Exchange (“the Farmers Defendants”)[1] now demur to all causes of action, and Defendant Fire Insurance Exchange (“Fire”) demurs to the third, fourth, fifth, seventh, and eighth causes of action. The demurrers are brought on the grounds that the FAC fails to state facts sufficient to constitute a cause of action and is uncertain, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), respectively.

The Farmers Defendants and Fire (“Moving Defendants”) also move to strike allegations pertaining to emotional distress, attorneys’ fees, restitution, declaratory and injunctive relief, and punitive damages, as well as the factual allegations of paragraph 48.

Plaintiffs oppose both the demurrer and the motion to strike and Moving Defendants reply.

REQUEST FOR JUDICIAL NOTICE

Moving Defendants request the Court take judicial notice of the original Complaint and the operative First Amended Complaint filed in this matter.

Judicial notice may be taken of records of any court in this state. (Evid. Code, § 452, subd. (d)(1).)

Because the Complaint and FAC are part of the Court’s record for this case, the Court may take judicial notice of them. (Ibid.) However, “while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes

judicial notice of the existence, filing, and legal consequences of the Complaint and FAC filed in this matter as court records, but not the truth of the allegations contained therein.

In connection with the motion to strike, Moving Defendants also request judicial notice of *Benn v. Allstate Insurance Co.* (E.D. Cal. 2021) 569 F.Supp.3d 1029. Similarly, courts can take judicial notice of records of any court of record of the United States. (Evid. Code, § 452, subd. (d).) Therefore, the Court takes judicial notice of the *Benn* case as a court record.

ANALYSIS

1.

DEMURRER

“It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts “[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [“in considering the merits of a demurrer, however, “the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

Further, in ruling on a demurrer, a court must “liberally construe” the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is

entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against [the party].” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 7:85, p. 44, emphasis in original.)

As such, where a demurrer is made upon the ground of uncertainty, the demurrer must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears by reference to page and line numbers. (See Fenton v. Groveland Comm. Services Dist. (1982) 135 Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

Moving Defendants first demur to the entire FAC on the grounds that it fails to allege alter ego.

The elements to establish alter ego liability are (1) such a unity of interest and ownership between the corporation and individual that no separation actually exists, and (2) an inequitable result if the acts in question are treated as those of the corporation alone. (Leek v. Cooper (2011) 194 Cal.App.4th 399, 417.) Here, Plaintiffs merely concludes:

4.

Defendants¿FARMERS¿GROUP¿INC.,¿FARMERS¿INSURANCE¿EXCHANGE,¿and FIRE

INSURANCE EXCHANGE (collectively "Farmers") are corporations or business entities licensed to transact insurance in California. Each acted as agent or alter ego of the others.

(FAC
¶ 4.)

This is insufficient to allege (1) a unity of interest and ownership among Farmers Group Inc.; Farmers Insurance Exchange; and/or Fire Insurance Exchange that no separation actually exists or (2) an inequitable result.

Further, because the FAC conflates the conduct of three separate entities as "Farmers" throughout, it is uncertain who is alleged to have done what and what causes of action are alleged against which Defendant.

Therefore, the Court sustains Moving Defendants' demurrer to the entire FAC on the ground of uncertainty.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Here, because the Court sustains Moving Defendants' demurrer to the entire FAC, the Court denies the motion to strike as moot.

3.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, *supra*, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, although

Plaintiffs do not specify any additional facts that could be added to cure the deficiencies identified above, Plaintiffs request leave to amend to add additional factual detail, as Plaintiffs have already done vis-à-vis the FAC. Notwithstanding Plaintiffs' failure to articulate the specific facts to be added to the pleading, the Court acknowledges that the defect can be cured by more clearly alleging an alter ego relationship and/or which specific Defendants are alleged to have done what (versus which Defendants are allegedly liable by virtue of their alter ego relationship).

Therefore,

the Court grants Plaintiffs' request for leave to amend.

CONCLUSION AND ORDER

For the reasons stated, the Court sustains Moving Defendants' demurrer to the entire FAC on the ground of uncertainty with leave to amend.

And having sustained Moving Defendants'

demurrer to the entire FAC, the Court denies as moot Moving Defendants' motion to strike.

Further, the Court orders Plaintiffs to file and serve an amended complaint in conformity with the ruling on or before September 22, 2026.

Further, the Court will enter the proposed Orders lodged on August 11, 2026 in conformity with the ruling.

Moving Defendants shall provide notice of the Court's ruling/Orders, and file the notice with a proof of service forthwith.

DATED: September 8, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court

[1] The FAC refers to all three moving defendants as "Farmers" but because Fire takes a different position, for purposes of the demurrer and motion to strike, the Court refers to Fire separately from the Farmers Defendants.